

TO WHAT EXTENT DID THE VOTING RIGHTS ACT OF 1965 EFFECTIVELY ELIMINATE BARRIERS AND BOLSTER THE RIGHTS OF AFRICAN AMERICAN VOTERS?

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Introduction

The matter of race has been a persistent and complex issue interwoven throughout America's history. Despite the abolition of slavery in 1865 and their bestowment of rights, African Americans continued to suffer from immense marginalization, disenfranchisement, and discrimination. Near the wake of the twentieth century, institutionalized discriminatory and segregation practices against African Americans formed the Jim Crow Laws under the "separate but equal" doctrine. Again, these policies sparked public outrage and discord among the African American community, gaining immense momentum and influence through the Civil Rights Movement. Eventually, in 1960's, the US enacted new policies to undo the racially predisposed laws of the past, such as the Civil Rights Act of 1964, the 24th Amendment ratified in 1964, and importantly the Voting Rights Act of 1965. Aimed at bolstering voting rights of African Americans, the act effectively banned literacy tests, and most notably gave the government the jurisdiction to intervene in state voting policies. This paper explores the effectiveness of the 1965 Voting Rights Act in eliminating racial barriers in voting, delving into its significance in fostering racial equality as well as its influences on future legislation and public policy that continue to affect society today. Ultimately, although the Voting Rights Act did indeed represent an elimination of racial voting barriers and encouraged greater electoral participation in the short term, its impacts were greatly limited by evolving forms of voter suppression through counterproductive legislative acts on both the state and federal level that weakened the act's enforcement mechanisms.

Context

The Jim Crow era of modern America implemented a multitude of different measures to prohibit voting access for black individuals. Through methods such as poll taxes,

literacy tests, grandfather clauses, disenfranchisement clauses, and general intimidation ratified via the *Williams V. Mississippi* holding, the government attempted to retain white supremacy during electoral processes by exploiting loopholes in the 15th Amendment. However, as the Civil Rights Movement continued to gain momentum, these discriminatory policies came under immense public scrutiny, resulting in public policy changes that effectively overturned such biased laws. The 24th Amendment was passed initially in early 1964, putting a ban on poll taxes on a federal level. Subsequently, a year later, the Voting Rights Act was passed, further eliminating other discriminatory policies such as literacy tests and disenfranchisement clauses. Furthermore, clauses 4 and 5 of the act provided a clear formula and system of preclearance, which required all states to gain federal preapproval for any alterations in new voting practices or procedures, marking the most significant statutory change in the relationship between federal and state governments regarding voting processes since the Reconstruction era. In shorter words, the Voting Rights Act signified not only a significant moment in the advancement of the Civil Rights Movement, but also a monumental shift in the power dynamics between federal and state governments, an important change that set the stage for the future repercussions of the Voting Rights Act.

Positive Changes

The direct aftermath of the Voting Rights act proved to be beneficial in improving voter numbers and turnout among African American individuals. Electoral participation increased drastically, with a quarter million new black individuals registered, a third of which through federal examiners. Such changes were of a direct cause-and-effect relationship following the expansion of voting rights for black individuals that the Voting Rights Act granted, seeing that it opened up lanes for voter registration and eliminated other prohibiting barriers. In addition, given the socio-political circumstances at the time, voter turnout spiked after the act was initially passed, seeing that black individuals were eager to exercise these newly granted rights. These effects were especially prevalent in the South, where state-level voting restrictions were especially stringent on a large black population. As a result of the Voting Rights Act, state-wide electoral participation in all facets increased significantly, with black registration increasing in Mississippi from 28,000 in 1965 to 406,000 in 1984. This marked a general trend in stimulating civil rights activity in areas with high numbers of unregistered black voters, explaining the sudden surge in black voter registration. By the end of 1966, only four out of thirteen southern states had African American voter registration numbers less than 50%⁵³. Furthermore, the Voting Rights Act

also facilitated the increasing appointment of African American federal officials, especially in local, single-member district elections. States like Alabama saw a sharp increase in African American elected officials, with that number increasing from 72 to 1,469 in 1969. In addition, the Voting Rights Act also implicitly enabled local governments to intervene in state redistricting, reflecting the government's attempts to bolster African American federal representation, although this has left corridors for exploitation through racial gerrymandering. However, holistically speaking, both the direct surge in African American voter registration, voter turnout, and elected officials emphasize the direct effects of the Voting Rights Act in initially promoting electoral equality, proving that it was indeed effective in its goal of eliminating many previous barriers prohibiting equal voting; changes that still persist today.

Challenges and Negative Repercussions

Although the Voting Rights Act initially facilitated greater electoral representation and equality among African Americans, as time progressed it lost its effectiveness in enforcing racial electoral equality, prompting the development of alternative voter suppression mechanisms and increasing state-level retaliation. The most important clarification that must be made is that the Voting Rights Act, albeit promoting equality quantitatively, failed to resolve the deep racial tensions that continued, and will continue to exist. As such, as the act marinated, these tensions deepened and encouraged dissatisfied white voters to find other means of suppressing black individuals from voting and gaining influence. Interestingly, the Voting Rights Act led to increased political participation not only for African American individuals, but for the majority-white individuals too. This white voter activity was seen as a white counter-mobilization effort to offset the efficacy of new black voters, ultimately having long-lasting negative effects on white individuals' racial attitudes. Such activity suggests that the Voting Rights Act failed to tackle the root issue underlying electoral racial inequality, instead prompting counter-mobilization efforts to dilute the influence of black votes.

Another key method utilized to curb the effectiveness of the vast number of black voters now present was the use of racial gerrymandering during redistricting. The Voting Rights Act, in conjunction with the Equal Protection Clause of the 14th Amendment, implicitly allowed for the creation of majority-minority districts during a congressional redistricting to prevent minority vote dilution that was becoming increasingly present, as mentioned previously. In the 1986 Supreme Court ruling *Thornburg v. Gingles*, the government was able to prove voter dilution under the second clause of the Voting Rights

Act, ultimately setting the precedent for federal intervention of redistricting, given that the state could present “compelling state interest” to do so. However, some states were able to exploit this loophole stimulated by the Voting Rights Act to actively marginalize African American voters by drawing congressional districts to either separate them via hijacking, reducing their influence on district elections, or by congregating black voters together to minimize their sway over state elections through a process called racial gerrymandering. Conducting a brief case study on one of the first Supreme Court cases regarding racial gerrymandering in 1993, appellants in *Shaw v. Reno* that claimed that a majority black district in North Carolina, that awkwardly spanned 160 miles along the I-85 without being much wider than the I-85, was racially segregating black individuals via gerrymandering. Although the holding ruled the district unconstitutional and a breach of the 14th Amendment, it represents an instance that solidified racial barriers and diluted black votes, suggesting that the Voting Rights Act opened corridors that allowed for it to be exploited and backfire on its original intentions. In this sense, the Voting Rights Act was not entirely effective in eliminating racial barriers, as racial gerrymandering reinstates these barriers. Additionally, racial gerrymandering continues to be an issue today, as seen through the gerrymandering of Tarrant County in Texas, where newly drawn districts diluted the influence of the only black, democrat commissioner in the state. Therefore, although the Voting Rights Act may have been successful in its inception, the progression of time gave way for increased exploitation and misuse that have had serious repercussions.

Rising state-wide retaliation and challenges against the preclearance clause of the Voting Rights Act further diminished its power in enforcing equality and eliminating racial barriers. The most notable piece of legislation to directly respond to the Voting Rights Act, the landmark Supreme Court case *Shelby v. Holder*, effectively abolished the Voting Rights Act’s preclearance act, giving states jurisdiction and flexibility over electoral procedures without federal oversight. Sparked by the racially backed redistricting of Shelby County, Alabama that reduced minority representation by 40% and essentially removed Ernest Montgomery, the only black councilman in his city, the Supreme Court ruled that the preclearance clause was unconstitutional, holding that the federal government does not hold the right to interfere with state electoral processes. This has allowed predisposed racial tensions to reappear in state-wide voting, reverting the effectiveness of the Voting Rights Act greatly. States have also reimplemented stringent voting laws that negatively affect African American and minority voters, namely Texas which reinstated the country’s strictest voter ID law moments after the Shelby ruling, a policy that was previously denied due to its

failure to obtain preclearance. As such, the results of the *Shelby v. Holder* holding have had serious impacts on voter turnout rates among black individuals. Since 2008 to 2022, the white-black voter turnout gap has increased by 5 points, marking a significant increase in the disparity between black and white voters that was previously kept almost equal under the preclearance clause. This reflects the Voting Rights Act's importance in maintaining equality, suggesting that its preclearance clause was an integral element in maintaining voter equality, yet recent state level retaliation has struck down such protections, now rendering the Voting Rights Act as much weaker than it was before. Ultimately, despite its short-term benefits, the Voting Rights Act has weakened significantly, as in the long term it has struggled to effectively protect the rights of African American voters, allowing many racial barriers to be re-established.

Nuance

The Voting Rights Act of 1965 has had mixed effects: It saw immense success in solidifying the rights of African American voters, successfully eliminated stringent barriers such as literacy tests, and helped strengthen government control of state electoral policies; it also set the foundation for legal loopholes to be established that helped challenge the act and ultimately reverse its effects through the abolishment of the preclearance clause.

Compared to other notable Civil Rights legislation of the time, such as the Civil Rights Act and the Fair Housing Act, it had a very narrow focus and was effective in its purpose. Yet, its decline seemed sharper and more jarring than that of one like the Civil Rights Act. Although this might seem like the case, the underlying reason for its failure is not its effectiveness as a law, but the deeply ingrained racial tensions present in America. Like any of the laws of that time, they were all bound to be challenged because the deep divide between races in America could simply not be mended. Looking further, race-related socio-economic challenges, as well as general race-based biases were the key contributors to the Voting Rights Act's decline of effectiveness. Ultimately, these issues cannot and most likely will not be directly resolved, therefore rendering all Civil Rights legislation ineffective in the long run. However, it can be agreed upon that the Voting Rights Act and other legislation at the time were effective in solving the most foundational and most racially disenfranchising policies of the Jim Crow era, showing how its ineffectiveness in the modern era does not impair its efficacy as a whole in eliminating racial barriers and bolstering the most fundamental state of racial equality among voters.

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